

MEMORANDUM OF UNDERSTANDING

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BETWEEN

KWARA STATE GOVERNMENT

AND

IHS (NIGERIA) LIMITED

THIS MEMORANDUM OF UNDERSTANDING (the ‘**MOU**’) is executed this 17th day of November 2023 (the “**Effective Date**”)

Between

KWARA STATE GOVERNMENT of Kwara State Government House, Ahmadu Bello Way, G.R.A, Ilorin, Kwara State (hereinafter referred to as “**KWSG**”, which expression shall where the context so admits, include its successors-in-title and assigns) of the first part;

And

IHS (NIGERIA) LIMITED, a limited liability company registered under the laws of Nigeria and having its registered office at Plot 934 Idejo Street, Victoria Island, Lagos State (hereinafter referred to as “**IHS**”, which expression shall where the context so admits include its successors-in-title, assigns and Affiliates) of the second part.

KWSG and **IHS** for the purpose of this MOU be jointly referred to herein as the “**Parties**” and individually as a “**Party**”.

WHEREAS

- a. KWSG is in the process of constructing and developing a technology innovation facility and ancillary infrastructure (the “**Hub**”) with a view to stimulate and deepen technology and services innovation, entrepreneurship, investment and job creation in Kwara State, in particular, and the Federal Republic of Nigeria, in general (the “**Project**”).
- b. IHS is a limited liability company duly licensed by the Nigerian Communications Commission to engage in telecommunications infrastructure development in Nigeria.
- c. KWSG has engaged IHS with a view to collaborating on the execution and delivery of the Project and IHS has agreed to participate in the delivery of the Project by way of providing financial, technical and organizational support to the build, operations, maintenance and management of the Hub in exchange for certain benefits including, but not limited to, the use and operation of the Hub for the delivery of IHS training and ancillary programs and event as well as grant of exclusive branding rights among other things (the “**Collaboration**”).
- d. IHS and KWSG have agreed to enter into this MOU to record the terms and conditions pertaining to preliminary negotiation with respect to the Collaboration.

NOW THEREFORE, the Parties hereby agree as follows:

1. SCOPE OF THE MEMORANDUM OF UNDERSTANDING

1.1 The Parties agree to cooperate and mutually engage in corporate, commercial, technical, and financial discussions under this MOU with a view to the successful coordination and completion of the Collaboration being the principal objective of this MOU. For the purpose of realizing this objective it is mutually agreed by the Parties as follows:

1.1.1 KWSG shall prepare and deliver to IHS a plan with respect to the delivery of the Project (the “**Project Plan**”), which shall contain the strategic objectives, governance structure, financial requirement, commercial and marketing

framework and operations and maintenance plan for the Hub, and the Parties shall jointly review the Project Plan with a view to agreeing the framework for their joint participation in the Collaboration.

- 1.1.2 The Parties acknowledge that the terms of this MOU and the Collaboration are subject to the signature by the Parties of an agreement that shall govern the definitive terms of the Collaborations in furtherance of the Project, that agreement shall set out the terms upon which the Parties shall implement the Collaboration (the “**Definitive Agreement**”). In the event that the Parties are able to agree the Project Plan and subject to such terms as shall be agreed and reduced into the Definitive Agreement, IHS shall fund the Project, including the completion, operations and maintenance Hub in exchange exclusive branding right over and in respect of the Hub.
- 1.1.3 For the Purpose of implementing the Collaboration and for giving effect to this MOU, the Parties shall mutually agree other coordination activities and timelines for all deliverables not specifically provided for in this MOU. The Parties further agree to put together a joint project coordination team in furtherance of the implementation of the objectives of the Collaboration.

2 **CONFIDENTIALITY**

- 2.1 The Parties agree that any information exchanged between them, whether or not clearly marked as proprietary and/or confidential, shall be kept confidential and shall not be disclosed or given to any third party without the prior written permission of the Party that supplied the information. This understanding does not apply to information given to professional advisers (to whom the same confidentiality obligations must be extended), information in the public domain, or to information required to be disclosed under any written law, an order of court or to a statutory regulator.
- 2.2 No announcement or press release on the collaboration between the Parties shall be issued without the prior written approval of the Parties having been expressly provided.
- 2.3 The provisions of this clause shall survive this MOU and the Parties shall remain bound by the provisions of this clause during the tenure of this MOU and for a period not less than **two (2) years** following the expiry or termination of this MOU, howsoever occurring.

3 **RELATIONSHIP BETWEEN THE PARTIES**

- 3.1 Nothing in this MOU shall create any relationship beyond that contemplated by the Parties and herein expressly stipulated and agreed. The Parties hereby confirm that the relationship between them pursuant to this MOU shall not be construed as creating any partnership or joint venture in respect of existing business unless and until such is otherwise agreed between the Parties and reduced to an agreement duly signed by the Parties.
- 3.2 IHS shall not be precluded by KWSG or its agents by virtue of its participation in and under this MOU or precluded in anyway whatsoever from carrying on its normal administrative, commercial and technical / operational activities in connection with the general provision of services to its customers.

4 **LIMITATION OF LIABILITY AND INDEMNITY**

- 4.1 Neither Party shall be liable for any loss, damage or injury whatsoever and howsoever arising, incurred or suffered by the other Party or any third party caused by or arising from

the other Party's performance of its obligations in terms of this MOU, including without limitation, all consequential and special losses or damages, caused to that Party or any third party including that Party's directors, employees, agents, representatives, customers or to any other person whomsoever.

- 4.2 Each Party (the "**Indemnifying Party**") hereby agrees to indemnify, defend, protect and hold harmless the other party, its employees, officers, shareholders, directors, agents, contractors and Affiliates (the "**Indemnified Party**") from and against, and assumes liability for, any and all claims, demands, actions, losses, damages, assessments, charges, limitation, interests, penalties, and attorney's fees which may from time to time be suffered or incurred by, or asserted against the indemnified Party directly or indirectly, on account of or in connection with any injury, death, loss or damage to any person, tangible or intangible property or facilities of any person or entity (including reasonable attorneys' fees and costs at trial and appeal) to the extent arising out of or resulting from the negligence or willful misconduct of the Indemnifying Party, its officers, employees, servants, affiliates, agents or contractors or from any other person or entity for whom it is in law responsible.

Provided that nothing in **Clause 4.2** shall be construed as limiting the liability of any Party for personal injury or death resulting from the negligence of a Party or its employees.

5 NON-ASSIGNMENT, BINDING EFFECT AND COST

- 5.1 This MOU and the discussions between the Parties pursuant thereto is on an exclusive basis between IHS and KWSG.
- 5.2 This MOU is intended to be and shall be binding on the Parties and their legal successors and permitted assigns and representatives.
- 5.3 No Party may assign the benefit under this MOU or any rights or benefit thereof without the written consent of the other Party first having been obtained, such consent not to be unreasonably withheld.
- 5.4 Neither this MOU nor any of its provisions shall be released, discharged, supplemented, interpreted, amended, varied, modified, or waived in any manner except by an instrument in writing signed by duly authorised officers or representatives of the Parties.
- 5.5 The invalidity, illegality or unenforceability of any provision/clause of this MOU shall not affect the other provisions and the MOU shall be given effect as if the invalid, illegal or unenforceable provision had been deleted and replaced with a provision with a similar economic effect to that intended by the Parties.
- 5.6 The costs incurred in the negotiation, preparation and execution of this MOU, including attorneys' fees, shall be borne solely by the Party incurring such costs.

6 TERM

This MOU shall become effective on the Effective Date and shall be valid and remain in full force, operation and effect for a period of **five (5) years**, or until it is replaced by the Definitive Agreement executed by the Parties, whichever is earlier. This MOU shall guide discussions between the Parties with a view to agreeing the Definitive Agreement. The Parties undertake to negotiate in good faith with the intent to agree and conclude the Definitive Agreement and other matters referred to in the MOU. The Parties undertake to negotiate in good faith with the intent to agree and conclude the Definitive Agreement and other matters referred to in the MOU.

7 GOVERNING LAW AND DISPUTE RESOLUTION

- 7.1 This MOU shall be governed and interpreted in accordance with the laws of the Federal Republic of Nigeria.
- 7.2 In the event of any difference(s) or dispute(s) arising out of the interpretation or application of the provisions of this MOU, the Parties shall immediately consult each other with the view to expeditiously resolve such differences or disputes in a spirit of mutual understanding and cooperation.

8. NOTICES AND DOMICILIA

- 8.1 All notices shall be in writing and shall be deemed to have been duly given when delivered by hand, posted by pre-paid first-class post or by registered courier to the intended recipient at the address stated in this MOU or such other address as the addressee may from time to time have notified for the purpose of this **Clause 8**. Notices which have been posted as above shall be deemed received on the second day following dispatch.
- 8.2 The Parties address for communication for all purposes of, and in connection with, this MOU as follows:

**The Attorney General,
Kwara State Ministry of Justice
Governor's Office,
Ahmadu Bello Way,
GRA, Ilorin, Kwara State**

**IHS (Nigeria) Limited
Plot 934 Idejo Street, Victoria Island, Lagos, Nigeria.
Email: leg_corporatecommercial.ng@ihstowers.com**

9. ENTIRE AGREEMENT

This MOU contains the entire agreement and understanding between the Parties relating to the subject matter of this MOU and extinguishes all previous understanding between the Parties relating to the subject matter hereof.

Signature page follows

IN WITNESS WHEREOF the Parties hereto have executed this MOU as of the day and year first above written.

SIGNED, SEALED AND DELIVERED

For and on behalf of:

KWARA STATE GOVERNMENT

by

Name _____

Designation _____

Signature

Name _____

Designation _____

Signature

The common seal of

the within-named

IHS (NIGERIA) LIMITED

Is hereunto affixed in the presence of:

Director

Director / Secretary